



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 5, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201908507 regarding Lieutenant James Moore, Tax No. [REDACTED] (DADS No. 2020-22104)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and has determined that Lieutenant Moore will receive no disciplinary action. Lieutenant Moore responded to a possibly suicidal individual who had texted a friend that the individual had attempted suicide and was having further suicidal thoughts prompting a notification to 911. During a review of the video evidence Lieutenant Moore is observed briefly looking down at the phone, which appeared to be opened when he retrieved it. However, a review of the brief moment in the video evidence where Lieutenant Moore is seen holding the phone does not clearly support that he conducted an actual search of the phone. Further, Lieutenant Moore denied that he searched through the phone when questioned during his CCRB interview. It should be noted that the responding officers were not interviewed by the CCRB, which may have provided further context.

Lieutenant Moore throughout the interaction with the individual appeared professional and concerned for the individual's well-being. As noted, the CCRB found no misconduct in entering the residence or in Lieutenant Moore's decision to remove the despondent individual to the hospital for evaluation.

While the Police Commissioner takes an individual's right to privacy extremely seriously, in this matter the evidence that the phone was actually searched is unclear. Therefore, Lieutenant Moore will receive no disciplinary action for the alleged violation of Patrol Guide Procedure No. 212-11 (Investigative Encounters/Search).

The CCRB also noted other misconduct against Sergeant (then Police Officer) Emmett Butler, Tax No. [REDACTED] and Police Officer Terence Walsh, Tax No. [REDACTED] in that the officers failed to prepare an Aided Report for the above incident. However, a review of Department records revealed that an Aided Card was in fact prepared but had listed the individual's last name in error. Thus, Sergeant Emmett Butler, Tax No. [REDACTED] (DADS No. 2020-22103) and Police Officer Terence Walsh, Tax No. [REDACTED] (DADS No. 2020-22105) will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 216-01 (Aided Cases General Procedure).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office